



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN 26 2001

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12620
(FIRST REVISION)

EXPIRATION DATE: **February 5, 2001**

1. GRANTEE: Celanese LTD.
Dallas, TX
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the round-trip transportation in commerce of allylamine in a non-insulated DOT Specification MC 330 cargo tank motor vehicle equipped with bottom outlets. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.102(c)(3) Special Provisions B9 and B14 in that a non-insulated DOT Specification MC 330 cargo tank motor vehicle equipped with bottom outlets is not authorized except as specified herein; and the marking requirements contained in §§ 172.203(a) and 172.302(c).
5. BASIS: This emergency exemption is based on the application of Celanese LTD. dated January 24, 2001, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property and supplemental letter dated January 25, 2001.

JAN 26 2001

Continuation of DOT-E 12620 (First Rev.)

Page 2

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Allylamine	6.1	UN2334	I, Hazard Zone B

7. SAFETY CONTROL MEASURES - Packaging prescribed is a non-insulated DOT Specification MC 330 cargo tank motor vehicle equipped with bottom outlets. The cargo tank is identified as Enterprise Trailer Number 4371, Serial Number 90345 and has a maximum allowable working pressure of 125 psig.

8. SPECIAL PROVISIONS:

a. Transportation is limited to movement from the Iowa DOT weight station on Interstate 74 near Coal Valley, IA to Charles City, IA where the product will be removed from the cargo tank. The cargo tank, containing a residual amount of product, will then be transported from Charles City, IA to a facility located in Portsmouth, VA where the tank will be cleaned and removed from this service.

b. MARKING - The marking requirements of §§ 172.203(a) and 172.302(b).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

JAN 26 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: CHHOCHMAN